

Society, IT and Law

Program: BIT

Course Code: BCT 421

Course Type: Theory

Year: Fourth

Semester: VIII

Credit Hour: 3

Hours: 45

Course Objectives:

The objective of this course is to provide students with an understanding of the relationship between society, IT, and law. Students will learn about the impact of IT on society, the legal framework for IT, and the ethical and social issues surrounding IT. The course will focus on the Nepalese legal framework and provide students with practical skills for navigating the digital landscape.

Course Description:

This course will cover the following topics: the role of IT in society, the legal framework for IT, cybercrime and cybersecurity, privacy and data protection, intellectual property rights and digital piracy, E-governance and cyber law in Nepal, and the impact of social media on society.

Course Outcomes:

- Develop an understanding of the impact of IT on society
- Understand the legal framework for IT and its application in Nepal
- Identify ethical and social issues surrounding IT and the digital landscape
- Develop practical skills for navigating the digital landscape in Nepal

Course Contents:

Unit 1.	Introduction to Society, IT, and Law	3 Hrs
	1. Course objective and description	
	2. Definition and scope of Society, IT, and Law	
	3. Interactions and relationships among Society, IT, and Law	
Unit 2.	Ethical and Social Implications of IT (6 hours)	5 Hrs
	1. Ethical considerations in IT and their impact on society	
	2. Social implications of IT, including privacy and security concerns	
	3. Legal frameworks and guidelines for addressing ethical and social issues in IT	
Unit 3.	Intellectual Property Law	9 Hrs
	1. Overview of intellectual property law (3 hours)	

2. Copyright, trademark, and patent law
3. Protection of intellectual property in the digital age

Case Studies:

1. Apple vs. Samsung patent dispute: This is a well-known legal battle between two tech giants over alleged infringement of patents related to smartphones and tablets.
2. Nepal Music Copyright Society (NMC): In 2019, the NMC faced allegations of misusing royalty funds collected from music creators. This case highlights the importance of protecting intellectual property rights and the challenges faced by copyright societies in Nepal.

Unit 4. Cybercrime and Cybersecurity Law 9 Hrs

1. Overview of cybercrime and cybersecurity law
2. Types of cybercrime, including hacking and identity theft
3. Legal and technological measures for preventing and responding to cybercrime

Case Studies:

Nepal Rastra Bank data breach: In 2020, the Nepal Rastra Bank suffered a data breach that exposed sensitive information of its employees. This case underscores the need for stronger cybersecurity measures in Nepal and the potential risks of cybercrime.

Unit 5. E-Commerce and Consumer Protection Law 9 Hrs

1. Overview of e-commerce and consumer protection law
2. Legal frameworks and guidelines for online transactions
3. Protection of consumer rights in e-commerce

Case Studies

Daraz Nepal's refund policy: In 2021, Daraz Nepal faced criticism over its refund policy after customers reported difficulties in obtaining refunds for products. This case raises questions about the adequacy of consumer protection laws in Nepal and the responsibilities of e-commerce platforms in protecting consumer rights.

Unit 6 International and Comparative Law 6 Hrs

1. Overview of international and comparative law
2. Differences and similarities among legal systems around the world
3. The role of international law in governing IT and society

Unit 7 Emerging Issues in Society, IT, and Law (3 hours) 3 Hrs

1. Review of current and emerging issues in the field
2. Discussion of potential future developments and their implications

References

1. Information Technology Law: The Law and Society by Andrew Murray
2. Intellectual Property Law by Lionel Bently and Brad Sherman

3. E-Commerce Law: National and Transnational Topics and Perspectives by Julia Hörnle and Christian Twigg-Flesner
4. Cyberlaw: Text and Cases by Nandan Kamath